



HOTEL CONTRACT

This contract dated Friday, 08 September 2023, is drawn between the following:

HOTEL EQUATORIAL HO CHI MINH CITY

242 Tran Binh Trong Street, Ward 4, District 5, Ho Chi Minh City, Vietnam

VAT Code: 0300831580

Tel: +84 28 3839 7777

Fax: +84 28 3839 0011

Email: sales@hcm.equatorial.com

Contact Person: Ms. Nancy Vu Thi Thanh Nguyet – Senior Sales Manager

Acknowledge Person: Ms. Phoebe Nguyen Hoang Bich Phuong – General Director

And

365 TRAVEL AND INVESTMENT COMPANY LIMITED

Floor 9, Ladeco Building, No 266, Doi Can Street, Lieu Giai Ward, Ba Dinh District, Hanoi City, Vietnam

Tel: +84 24 3835 4899

Email: info@365travel.asia

Contact Person: Mr. Bui – Senior Sales Executive

Acknowledge Person: Hoang Thi Mai Huong - Contracting Director

This contract consists of 06 pages.

Business Type: **FIT (1-9 rooms)**

Geographical Market(s): **General Markets**

Room Category Single/Twin	From January 2024 to April 2024 From October 2024 to December 2024	From May 2024 to September 2024
Deluxe	VND 2,160,000 nett/R/N	VND 1,950,000 nett/R/N
Premier	VND 2,660,000 nett/R/N	VND 2,450,000 nett/R/N
Extra bed	VND 1,050,000 nett/R/N	

* Breakfast inclusion in room rate: **YES**

VAT Invoice will be issue under Business License information

TERMS AND CONDITIONS

a) **Rates, Taxes and Commissions**

- ai) All the above rates are quoted net inclusive of relevant taxes, non-commissionable and in **VND**.
- aii) The hotel reserves the right to adjust the rates, should there be any changes in the statutory taxes imposed by the local authorities.
- aiii) All accommodation rates are quoted per room per night inclusive of breakfast.
- aiv) Meal rates are quoted on per person / per meal basis.
- av) Breakfast venue is determined at the discretion of the hotel and service time is subject to the operating hours of the designated hotel outlet.
- avi) No refunds in cash or kind will be entertained for unconsumed meals.
- avii) The above rates are not valid for business or corporate travel. The hotel reserves the right to refuse the booking if applied to this market segment.

b) **Child Policy**

- Child below 6 years old:
 - No charge if sharing room with full paying adult(s) based on room's existing bedding.
 - Breakfast on complimentary basis.
- Child 6 - 12 years old:
 - No charge if sharing room with full paying adult(s) based on room's existing bedding.
 - Breakfast at child price.
- Child above 12 years:
 - An extra bed will be set-up for children above 12 years sharing room with parents
 - Daily breakfast is included in the extra bed surcharge.

c) **Check-in / Check-out**

- cii) Official check-in time is 14:00 and check-out time is 12:00.
- ciii) Check-ins before the official time and check-outs after the official time are on request basis subject to availability and unless contractually agreed, a surcharge of 50% of contract rate may be imposed.

d) Business Types, Geographical Markets and Tour Codes

- di) Accommodation rates stipulated in this contract are applicable only for the specified Business Types and Geographical Markets only. Rates for Business Types / Geographical Markets not covered in this contract will be on request basis. The hotel reserves the right to terminate the contract should there be a proven breach of this clause (within the reasonable control of the Tour Operator) by serving a notice of no less than 30 days.

dii) Definition of Business Types:

- FIT
 - All programmes marketed to leisure oriented, non-group affiliated travellers – excluding all Online B2C Consumer Bookable Websites.
- GIT
 - “Group Itinerary Tours”; leisure tour bookings for a minimum of 10 paying rooms up to a maximum of 20 paying rooms with Tour Code/Group Name, same arrival flight/check-in and check-out dates. In the event that the materialised number of rooms fall below the minimum required number of paying rooms, the hotel will apply the FIT rate or maintain the GIT rate – whichever being the higher of the two.
- Leisure Tour Series
 - Programmes marketed with fixed departures in a series whereby confirmation is subject to the hotel’s receipt and acceptance of:
 - Name of Series
 - Name of principle Tour Operator (where applicable).
 - Flow chart of entire series with defined check-in and check-out dates, number of required room blocks and ETA / ETD at/ from hotel.
 - (Upon request), the full itinerary (encompassing other destinations) of the series.
- MICE
 - Bookings for travels with the specific purpose of participating in Meetings, Seminars, Exhibitions, Conventions/ Conference, Trade Delegations, Special Events e.g. Expo(s), Sports Events etc. etc. as well as Incentive related trips.

- diii) **Tour Codes** as stipulated is a requirement when submitting reservation requests in order for the correct rates to be applied to the booking.

Rates offered in this contract, however modified, are not applicable for use in distribution to consumers over the internet whether directly or through Travel Agencies that sell “hotel-only-rates” directly to consumers on-line. Internet consumer rates will be available upon request subject to the dynamic MSP (Minimum Selling Prices) established, approved and controlled by the hotel.

div) **Online Rates and Conditions**

- Rates offered in this entire agreement are confidential and are not to be disclosed directly to the consumer and may ONLY be used to form the basis of a package.
- The operator may not sell the contracted net rates on any consumer Internet website either directly or via a secondary agent. The contracted agent is deemed responsible for the selling practices of the secondary agents.
- The distribution of any contracted rate through an Internet Website or Global Distribution System is STRICTLY PROHIBITED unless prior approval has been granted in writing from Hotel Equatorial Ho Chi Minh City.
- Rates are valid for bundled, packaged or brochured leisure business only. Package is defined as accommodation and breakfast coupled with at least one additional service whose value represents more than 30% of the rate. And UNDER NO CIRCUMSTANCES, will the package be sold or promoted on-line as STANDALONE OFFER.
- Rates are not to be offered, knowingly or unknowingly, to any party that distributes or retails via the Internet, or to any party that causes to distribution or retailing via the Internet. The hotel reserves the right to remove/cancel the Agreement if rates are being contracted via inappropriate channels or direct to consumers.
- If mentioned rates are resold to a third party, the hotel must be informed about the company details of this party and is entitled to terminate this contract if the third party is guilty of any breach of the mentioned contracted conditions.
- Any breach of these conditions would lead to the immediate termination of the contract. All rates and conditions are subject to change within 30 days of written notice.

e) **Allotment**

- ei) Room allotments for any / all business types will be subject to periodical review against previous materialisation. Hotel reserves the right to adjust the size of allotment and cut off dates based on the above.
- eii) Rooms not taken up by the specified cut off period will be automatically released, following which all further reservations will be on request basis.

f) **Cancellations / No Shows: (applied for FIT booking only)**

- fi) The hotel reserves the right to impose the following cancellation / no show charge:
For FITs:
 - 14 days to 8 days prior to arrival – One night's stay charge.
 - 7 days or less prior to arrival – Full length of stay charge.
- fii) Reduction in the number of rooms against requested bookings / blocks is considered and treated as cancellations.
- fiii) Postponement or changes of dates against requested bookings / blocks will be considered and treated as cancellations.

g) Payment Terms

- gi) Unless credit facilities have been established with the hotel, the following shall apply :
- FIT bookings, full payment 14 days prior to arrival.
- gii) If credit facilities have been established, the payment terms stipulated in the credit letter shall be applicable.
- giii) Failure to fulfil the conditions stipulated in the credit letter will result in the withdrawal in part / whole of any / all conditions in this contract.
- giv) All payments are to be made payable to **HOTEL EQUATORIAL HO CHI MINH CITY**
- Bank Details :

Account Name	:	HOTEL EQUATORIAL HO CHI MINH CITY
Bank Name	:	Public Bank Vietnam Limited Ho Chi Minh Branch
Bank Address	:	Ground Floor of Zen Plaza, no 54 – 56 Nguyen Trai Street
	:	Ben Thanh Ward, District 1, HCMC
Account No.	:	030-8-00-00-00290 (VND Account)
	:	030-4-00-37-00841 (USD Account)
Swift code	:	VIDPVNV5
Bank charges, if applicable, will be shouldered by the Remitter/Pay.		

h) Reservations

- hi) All reservations are to be directed to the hotel's reservation office at:

FIT Bookings & Enquiries Contact:

<i>Tel</i> : +84 28 3839 7777 (Reservations Dept.)		<i>Email</i> : reservations@hcm.equatorial.com
<i>Fax</i> : +84 28 3839 0011		

i) Contract Acceptance

- ii) This contract will not be applicable unless it is fully signed stamped and returned within a period of **fourteen (14) days** from the date of issue.

j) Tour Voucher

- ji) A copy of your specimen tour / accommodation voucher is to be submitted to the hotel prior to the period of validity of this contract.

k) Fulfilment Of Terms

- ki) Failure to fulfil the conditions stipulated in this contract will result in the withdrawal in part / whole of any / all conditions contained in this contract.

l) Termination

